

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	Economic Stability (ES)
	Part No./Name	B-Eligibility Factors (FITAP)
	Section No./Name	B-1800 Drug Testing (FITAP)
	Document No./Name	B-1890-FITAP Confidentiality
	Effective Date	February 1, 2013

I. STATEMENT OF POLICY

The regulations governing substance abuse confidentiality (42 CFR Part 2), pertaining to both alcohol and drug abuse, are stricter than most other confidentiality rules because the public health approach is based on the belief that a person with a substance abuse problem is more likely to seek treatment and succeed in treatment if he is assured his identity will not be revealed.

Federal regulations apply to any information, whether or not recorded, which identifies a patient as an alcohol or drug abuser, either directly or indirectly. An exception to this disclosure requirement is that a crime committed by a patient on the premises or against an employee or any threat to commit such a crime may be reported to a law enforcement authority without a signed consent.

II. PROCEDURES

Since DCFS and OBH will be working together to provide services to the client, it is essential that the two agencies share information. Information may not be shared by DCFS and OBH unless the recipient signs a consent specifically for the release of the information. To facilitate communication between the two agencies, two Consent for the Release of Information forms will be completed by DCFS prior to referral to OBH. (Refer to [B-1830-FITAP-Consent for Release of Information](#).) Communication shared is on a “need to know” basis.

Disclosure restrictions are not lifted even after:

- treatment has been terminated,
- the patient has died, or
- the case has been closed.

Violation of the confidentiality law is a federal criminal offense and any violator is subject to a criminal penalty in the form of a fine. Fines for:

- a first offense shall not exceed \$500;
- subsequent offenses shall not exceed \$5,000.

(Reference 42 U.S.C., Section 290dd-3(f); 42 CFR, Section 2.4). Violations of the confidentiality law may be referred to the U.S. Attorney for prosecution. (Reference 42 CFR, Section 2.5).

The re-disclosure of information received from OBH to any other agency/entity is prohibited by federal law unless DCFS obtains another consent form authorizing release of specific information to the specific agency. A general or blanket authorization for the release of medical or other information is not sufficient for this purpose.

Safeguard written documents pertaining to the screening, testing, education, treatment and rehabilitation services in accordance with federal law. Entries must be made on a separate Form CR

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8 to document all activities pertaining to drug screening, testing, education, treatment and rehabilitation services.

- Maintain these documents in a separate envelope that must be marked "Drug Screening - Confidential" and filed in Section III of the case record.
- Remove the separate drug envelope from the case record prior to review by anyone not directly involved in the processing of FITAP or SNAP eligibility or provision of STEP services on the case.

A [DAST-20](#) which does not result in a referral to OBH does not need to be safeguarded and may be filed in the case record.

III. FORMS AND INSTRUCTIONS

* [DAST 20 Form/Instructions Drug Use Questionnaire](#)

[OFS CR8 Form/Instructions Activity Sheet](#)

IV. REFERENCES

CFR Title 42 Part 2:2.1 to 2.67 **